



File No.: EXP202313437

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 4, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 4, 2023, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against EL CATON, S.C.M. (COLEGIO CAUDE) (hereinafter, the respondent or Colegio Caude) for not having duly attended to his rights of access and deletion.

On May 7, 2023, the complainant sent an email to the respondent stating, "The reason for this email is to request again the evidence that you have sent to B.B.B. to carry out the report (...)" and on May 8 another email in which he indicated that "(...) until we review the evidence, do not submit anything to the CAM."

After an exchange of emails between the parties, in which, in summary, the respondent indicated that "(...) the evaluation booklets are not provided to the parents, as this is not the procedure, since it is understood that the parents place their trust in the center and in the figure of the counselor. The results of the evaluation are detailed in the psychopedagogical report provided, and that should be sufficient" (email dated 05/23/2023).

In light of the refusal to provide the evidence, the complainant, along with the mother of the minor, sent a new email to the respondent on June 22, 2023, indicating that:

"(...) we wish to access the information and data held both in the Colegio Caude system and in the so-called Raíces System of the Community of Madrid, and that the deletion, cancellation, and/or elimination of any test, report, or psychopedagogical evaluation of our daughter B.B.B. be carried out, both in the school's systems or databases and in the aforementioned Raíces system of the Community of Madrid. This request is made especially since at no time has explicit consent been given by us to include any psychopedagogical report of our daughter in any system outside the school.

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(...) 1. That the right of access be granted free of charge by that responsible party within one month from the receipt of this request, and that the following information be sent to the address indicated above:

- A copy of the personal data that is subject to processing by that responsible party.
- The purposes of the processing, as well as the categories of personal data being processed.
- The recipients or categories of recipients to whom my personal data has been communicated, or will be communicated, including, where applicable, recipients in third parties or international organizations.
- The expected retention period, or if that is not possible, the criteria for determining this period.
- If there are automated decisions, including profiling, significant information about the logic applied, as well as the importance and expected consequences of such processing.
- If our personal data has not been obtained directly from us, the available information about its origin.

2) That the deletion of their personal data be agreed upon within one month from the receipt of this request, and that I be notified in writing of the result of the deletion carried out.

3) That in the event that it is agreed that it is not appropriate to carry out the total or partial deletion requested, I be communicated the reasons in order to, if applicable, appeal to the corresponding Control Authority.

(...) I hope you understand that all we want is for there to be no trace in the educational system of a psychopedagogical report (or any other evidence that appears in that system in relation to it) with which we have already expressed in writing and signed that we do not agree, and because that

information is no longer necessary in relation to the purposes for which it was collected.”

The respondent replied that “Today I have already received a response from the Western Area Directorate.

Neither they nor we have the authority to remove any report from the Raíces platform, a platform to which the Counseling and Psychopedagogical Office of Colegio Caude belongs.

The instructions are as follows: Direct yourselves to the Educational Inspection of the DAT (Territorial Area Directorate) WEST.”

Along with the complaint, the exchanged emails are attached.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated that

“As for the request for the right to delete the student’s data, it is considered satisfied because the parents of the interested party have already been informed of the impossibility of deleting those reports, as well as the impossibility of not uploading them to the Raíces platform due to the fact that both operations are obligations

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applicable legal provisions to the Data Controller, in accordance with the provisions of Article 6.1.c) by virtue of the agreement signed between the educational center and the Community of Madrid.

Regarding the request for the right of access, a timely and proper response was provided to the parents, who were already in possession of their daughter's psychopedagogical report (documentation to which they do have access by law and which they indicated in emails that they have already sent to their trusted neurologist), but not to the evaluation booklets used to prepare said report. In order to provide maximum assistance to the parents, the educational center contacted its direct supervisors, the Education Inspection.

It was the Education Inspection that communicated to the center the impossibility of sending the evaluation booklets used to prepare the psychopedagogical report of their daughter to the parents, thus fulfilling the obligations arising from the signed agreement.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on November 23, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the responding party a hearing period, so that within ten working days it could present any allegations it deemed appropriate.

The responding party indicated that “(...) Due to the complexity of this specific case, the responses to the requests for the rights of access and deletion were provided in a timely manner, since, according to the criteria of the AEPD, the one-month period may be extended by another two months, again considering the complexity of the specific case.”

The responding party states that “Having outlined the above, we will proceed to develop the responses provided by the Data Controller to each of the rights exercised by the complaining party:

- Exercise of the right to deletion: In a timely manner due to the complexity of the specific case and following the guidelines of the Education Inspection, which responded to the educational center regarding the impossibility of deleting such reports, which it was obliged to upload to the Raíces platform (by virtue of the concerted status of the educational center), the complaining party was informed of the impossibility of deleting the reports due to the center's lack of authority to do so.

Therefore, we understand the request for the exercise of the right to deletion to be satisfied, as there is a legal obligation applicable to the Data Controller that prevents the deletion of the aforementioned reports and, consequently, of the data they contained.

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- Exercise of the right of access: By following the guidelines of a Public Administration, such as the Education Inspection, which repeatedly communicated to the educational center and this to the complaining party the impossibility of access to the booklets used to prepare such reports, we understand the request for the exercise of the right of access to be satisfied.

Regarding the reports themselves, the complaining party also repeatedly expresses possession of these but additionally wants to obtain the aforementioned booklets. Therefore, the right of access does not apply since the requested information (the reports) was already in the possession of the complaining party so that they could forward it to their trusted neurologist. (...)"

The responding party justifies the responses to the exercised rights in several phrases that appear in the exchanged emails, "(...) On the other hand, we have already sent you the report (...) C.C.C.. Please keep us informed when you speak with him," and "(...) He has told us that the evaluation booklets are not given to the parents, that this is not how it is done, as it is understood that the parents place their trust in the center and in the figure of the counselor. The results of the evaluation are detailed in the psychopedagogical report provided, and that should be sufficient."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the complaining party, so that, within ten working days, they can formulate any allegations they consider appropriate without making allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding the

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obligations that fall upon them, as well as addressing the claims presented by an interested party and investigating, in a timely manner, the reason for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of their functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the claim regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the party being claimed against for analysis, to respond to this Agency within a month, and to provide evidence of having given the claimant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on November 23, 2023, for the purposes provided for in Articles 64.1 and 65

of the LOPDGDD, the claim presented was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission for processing was notified to the claimant. After this period, the interested party may consider their claim to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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Furthermore, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

Article 15 of the GDPR, Right of Access of the Data Subject, states that:

“1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as

to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

For its part, the Guidelines 1/2022, in its version of March 28, 2023, from the European Data Protection Board, regarding the rights of data subjects - right of access, states that

“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to the data itself, and information about the processing. The data subject can also obtain a copy of the personal data being processed, while this possibility is not an additional right of the data subject, but rather the modality of providing access to the data. Therefore, the right of access can be understood both as the possibility for the data subject to ask the data controller whether personal data concerning them is being processed, and as the possibility to access and verify this data. The data controller shall provide the data subject, based on their request, with the information included within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

(...)

16.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether the personal data of the requesting individual is being processed; second, access to that data; and third, information about the processing. These can be considered as three different components that together constitute the right of access.

17.1.1.1. Confirmation of whether or not personal data is being processed

18. When making a request for access to personal data, the first thing that data subjects need to know is whether the data controller is processing data concerning them. Therefore, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller does not process personal data related to the data subject requesting access, the information provided will be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data related to the requesting individual, the data controller must confirm this fact to that individual. This confirmation may be communicated separately or may be included as part of the information about the personal data being processed.

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treat (see below).

2.2.1.2 Access to personal data subject to processing

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, as long as it falls within the material scope of the GDPR, especially regarding how it is processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not just a general overview of the data or a mere

reference to the categories of personal data processed by the data controller. If no limits or restrictions apply, data subjects have the right to access all data processed concerning them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in full even in cases where the requesting individual initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in secs. 4.1 and 4.2.

(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in its entirety. Consequently, when the data controller processes data relating to the data subject, the data controller shall provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph 2. The data controller must take appropriate measures to ensure that the information is complete, accurate, and up to date, as close as possible to the state of data processing at the time of receiving the request. (...)

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right relates to a large amount of data, the controller may request the affected individual to specify the "data or processing activities to which the request refers." The right will be understood as granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it.

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On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;

- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform the controllers who are processing the personal data that the data subject has requested the erasure of any links to, or copies or replications of, those personal data."

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responsible parties who are processing the personal data of the request of the interested party for the deletion of any link to that personal data, or any copy or replica thereof.

3. Sections 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation that requires the processing of data imposed by Union law or the laws of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make impossible or seriously hinder the achievement of the objectives of that processing, or
- e) for the formulation, exercise, or defense of claims."

VI

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection legislation. Therefore, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

The present case is motivated by the requests to exercise the rights of access and deletion submitted to the entity Colegio Caude, where the daughter of the claiming party was studying early childhood education.

The responding party acts in the capacity of data controller, being, therefore, the entity to which requests for the exercise of rights regarding personal data protection should be addressed by the interested parties. These circumstances are not altered by the fact that Colegio Caude uses the management tool "Raíces" provided by the Autonomous Community of Madrid to educational centers. During the processing of this procedure, from the examination of the documentation provided, it has been established that the claiming party, on 07/05/2023, requested access to the personal data of her minor daughter, specifically to the tests conducted for the preparation of the psychopedagogical evaluation report of the minor, which had been previously delivered to the claiming party.

Subsequently, on 22/06/2023, the claiming party submitted a new request for access to the personal data of the minor available in the information systems of Colegio Caude or in the "Raíces" system.

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It is also stated in the proceedings that those pieces of evidence were not provided to the claiming party and that there was no response to the right of access exercised on 22/06/2023.

In this same communication dated 22/06/2023, the claiming party requested "(...) the suppression, cancellation, and/or elimination of any test, report, or psychopedagogical evaluation of our daughter B.B.B., both in the systems or databases of the school and in the aforementioned Raíces system of the Community of Madrid," noting that "this information is no longer necessary in relation to the purposes for which it was collected."

This request for suppression was responded to by the responding party indicating that it does not have "the authority to remove any report from the Raíces platform, a platform to which the Guidance Department and Psychopedagogical Office of Colegio Caude belong."

1. Regarding the right of access to the personal data of the daughter of the claiming party.

The main object of the right of access exercised by the claiming party relates to the psychopedagogical evaluation conducted on their daughter in the educational context. Specifically, the claiming party requested Colegio Caude for the tests conducted for the preparation of the psychopedagogical evaluation report of the minor.

Insofar as those tests include personal data of the interested party, it is understood that they must be provided in accordance with the requested right of access, without this generally implying the obligation to deliver a copy or reproduction of the original documents. It is up to the entity responsible for processing the personal data to choose the manner in which it will provide the information, as long as it guarantees the interested party's access to all their personal data and the complete information associated with it.

For a correct assessment of the issue raised, it is necessary to consider that the information contained in psychopedagogical reports is regarded as health-related data. Therefore, it is appropriate to bring to attention the Legal Report 445/2009 of this Agency, which determines the following:

"According to the description in the content of the inquiry, the action of the consulting entity involves the psychotechnical evaluation of students' aptitudes, personality characteristics, and professional preferences. Therefore, psychological data will be processed; Article 5.1 g) of the Regulation implementing Organic Law 15/1999 defines health data as 'information concerning the past, present, and future physical or mental health of an individual,' which allows us to conclude that we are dealing with health data.

Moreover, this criterion of considering psychotechnical and psychological data as health data has been maintained by the Agency prior to the entry into force of the aforementioned Regulation, as observed in the report of May 20, 2002, which established that;

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"Section 45 of the Explanatory Memorandum of Convention 108 of the Council of Europe defines the notion of 'personal data related to health,' considering that its concept encompasses 'information concerning the past, present, and future health, physical or mental, of an individual,' which may pertain to information about an individual who is in good health, ill, or deceased. The aforementioned Section 45 adds that 'it should be understood that this data also includes information related to alcohol abuse or drug use.'

In this same vein, Recommendation No. R (97) 5 of the Committee of Ministers of the Council of Europe, regarding the protection of medical data, states that 'the term medical data refers to all personal data related to the health of a person. It also affects data that is manifestly and closely related to health, as well as genetic information.'

In light of the concept outlined above, it is evident that the data subject to consultation regarding the medical-psychological evaluation to determine the fitness or otherwise of..., are data related to the health of individuals, and high-level security measures must be imposed on the files containing such

data, as required by Article 4.3 of the Security Regulation."

Regarding access to health data, Recital 63 of the GDPR states the following: "Data subjects should have the right to access personal data collected concerning them and to exercise that right easily and at reasonable intervals, in order to know and verify the lawfulness of the processing. This includes the right of data subjects to access data related to health, for example, data from their medical records that contain information such as diagnoses, examination results, evaluations by healthcare professionals, and any treatments or interventions performed. (...)."

Thus, it is pertinent to consider what was stated by the Court of Justice of the European Union (First Chamber) in the Judgment of 26/10/2023, case C-307/22, regarding a request for access to medical records and the possibility of obtaining a copy thereof:

"75. Consequently, the right to obtain from the data controller a copy of the personal data being processed implies that a faithful and intelligible reproduction of all that data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, that contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation (judgment of 4 May 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 45)."

"78. Well, in the case of examination results, evaluations by healthcare professionals, and any treatments or interventions performed on a patient, which generally include numerous technical data and even images, the provision of a mere summary or compilation of this data by the physician, in order to present it in a synthetic form, could create the risk of omitting or incorrectly reproducing certain relevant data or, in any case, that..."

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it hinders the patient both in verifying its accuracy and completeness and in understanding it."

"In light of all the above, the Court of Justice (First Chamber) declares:

(...)

3) Article 15, paragraph 3, first sentence, of Regulation 2016/679 must be interpreted as meaning that, within the framework of a doctor-patient relationship, the right to obtain a copy of personal data subject to processing implies that a faithful and intelligible reproduction of all such data is provided to the data subject. This right entails the right to obtain an integral copy of the documents collected in their medical history that contain, among others, such data, if the provision of such a copy is necessary to allow the data subject to verify its accuracy and completeness, as well as to ensure its intelligibility. With regard to data relating to the health of the data subject, this right includes, in any case, the right to obtain a copy of the data from their medical history that contains information such as diagnoses, examination results, evaluations by healthcare professionals, and any treatments or interventions carried out."

Once the appropriateness of providing the requested evidence to the claimant has been concluded, the attention to the right of access must be carried out in accordance with the provisions of Article 15.4 of the GDPR, according to which "The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others."

In the same vein, Law 41/2002, of November 14, which regulates the basic principles of patient autonomy and rights and obligations regarding information and clinical documentation, states in Article 18.3 that "The right of the patient to access the documentation of the medical history cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access the confidentiality of their subjective notes."

In the present case, it is noted that Colegio Caude did not provide the claimant with the evidence collected for the preparation of the psychopedagogical evaluation report of their daughter, which constitutes a violation of the provisions of Article 15 of the GDPR. Furthermore, as previously

indicated, it is noted that the claimant subsequently exercised the right of access again to obtain all the information detailed in paragraph 1 of the aforementioned Article 15 of the GDPR, which also did not receive the appropriate response.

In accordance with the above, Colegio Caude must provide the claimant with the evidence collected for the psychopedagogical evaluation of their daughter and the information detailed in Article 15.1 of the GDPR.

2. Regarding the right to erasure of the personal data of the claimant's daughter.

As previously indicated, the subject of the right to erasure exercised by the claimant relates to the psychopedagogical evaluation.

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carried out on your daughter in the educational field. Specifically, the request made to Colegio Caude referred to the suppression of "any test, report, or psycho-pedagogical evaluation."

The possibility of processing personal data involved in that evaluation is contemplated in Organic Law 2/2006, of May 3, on Education, in which its twenty-third additional provision, section 1, establishes that "educational centers may collect the personal data of their students that are necessary for the exercise of their educational function. Such data may refer to the origin and family and social environment, personal characteristics or conditions, the development and results of their schooling, as well as any other circumstances whose knowledge is necessary for the education and guidance of the students."

This Organic Law also obliges educational administrations to provide the necessary means for all students to achieve maximum personal, intellectual, social, and emotional development, as well as the objectives established generally in this Law, ensuring the necessary resources so that students who require educational attention different from the ordinary can achieve the maximum possible development of their personal capacities and, in any case, the objectives established generally for all students; as well as to establish the necessary procedures and resources to identify early the specific educational needs of these students (Article 71).

In the same vein, Law 1/2022, of February 10, Master of the Freedom of Educational Choice of the Community of Madrid, refers in Article 20 to the early identification of the needs of these students, their evaluation and assessment, so that the corresponding educational response can be provided.

According to Article 21 of this Law 1/2022, this is the main objective of the psycho-pedagogical evaluation, which "includes the collection, analysis, and assessment of all relevant information related to the student, their family, school, and social context, to determine the type of educational need they possess. For the realization of the psycho-pedagogical evaluation, family participation is considered fundamental. Initially, the authorization of the student's parents and legal guardians will be required, and their subsequent collaboration will be essential to gather the necessary aspects to carry out an objective evaluation."

Article 22 "Psycho-pedagogical Report" of the same Law 1/2022 establishes the following:

"1. The realization of the psycho-pedagogical evaluation will serve as a basis for the preparation of a psycho-pedagogical report, which will be included in the school file, in which different aspects related to the student will be collected, especially regarding their personal and educational evolution, the educational needs they require, curricular adaptations, the schooling proposal, educational supports, and any other guidance deemed essential, as well as the process for its review or update.

2. For the realization of the psycho-pedagogical evaluation, the authorization of the student's parents and legal guardians is necessary. A copy of the report resulting from the evaluation must be provided to them, as well as information from the center regarding the measures."

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"proposals."

On the other hand, Decree 23/2023, of March 22, from the Governing Council, which regulates educational attention to the individual differences of students in the Community of Madrid, applicable to concerted schools such as Colegio Caude, also refers to the prevention, detection, and identification of barriers to learning and participation, as well as the determination of educational needs as part of the teaching function.

According to Article 6 of this Decree, the educational needs of students will be determined, in general, after the completion of a psychopedagogical evaluation, which will also serve to substantiate the most appropriate educational response; and which will include the collection, analysis, and assessment of all relevant information related to the student, their family, school, and social context, which is of interest for determining educational needs and proposing appropriate measures.

In several of the cases outlined in this Decree, the completion of a psychopedagogical evaluation will be mandatory for the initial determination and subsequent monitoring of educational needs.

"The conclusions of the psychopedagogical evaluation will be recorded in a psychopedagogical report, which will be prepared according to the model included in Annex I and will be signed by the person responsible for conducting the evaluation. It will be attached to the student's academic file and will include aspects related to the identification of barriers to learning and participation (personal and academic evolution of the student, assessment of the level of development in the various areas of current functioning, level of curricular competence, and analysis of the learning context), with the determination of educational needs, the proposal of educational measures, both ordinary and specific, that are required to adequately address those needs, and any other guidance or observation deemed essential, as well as the appropriate time, if applicable, to conduct a new psychopedagogical evaluation. A copy of the psychopedagogical report will be provided to the parents or legal representatives of the student" (Article 6.6 of Decree 23/2023).

Finally, it should be noted that the second additional provision of Decree 23/2023 establishes that in the obtaining and processing of personal data of students and their families, compliance with the provisions contained in the LOPDGDD, RGPD, and implementing regulations will be ensured.

In short, the psychopedagogical evaluation is conceived as an essential instrument that educational administrations can employ with the ultimate aim of addressing the individual differences of students and promoting their personal and academic development, which is seen as an obligation of these administrations.

In this context, the request for suppression made by the claiming party must be analyzed, which requested the elimination of all tests and reports conducted for the psychopedagogical evaluation of their daughter by Colegio Caude.

It is not recorded that such evaluation was carried out without the authorization of the parents of the student.

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minor, although their opposition to the obtained result and the proposed educational plan is noted, a situation contemplated in the regulations set forth.

The specific situation presented to Colegio Caude for carrying out the evaluation is also not documented in the proceedings, making it impossible for this Agency to determine whether the evaluation conducted is prescriptive or not for the determination of educational needs.

In any case, this Agency understands that it is in the interest of Colegio Caude to be able to demonstrate that it fulfilled its obligations regarding the educational attention of the student and her guidance within the educational system, regardless of whether the proposed plan was implemented or not due to the rejection by the claiming party. This entails the necessity for Colegio Caude to retain the information processed in relation to the repeated evaluation.

However, this retention will be restricted if the personal data processed is no longer necessary in relation to the purposes for which it was collected, as pointed out by the claiming party in their request to exercise the right to erasure. Therefore, the psychopedagogical report could be erased as long as it is not necessary for the development of the educational function or for Colegio Caude to justify its compliance with its obligations.

Neither party has provided sufficient elements regarding this issue that would allow this Agency to assess whether, in this specific case, the retention of the personal data in question is appropriate or not.

However, it can be concluded that the response provided by Colegio Caude to the right of erasure is unsatisfactory as it merely indicated to the claiming party the impossibility of erasing the psychopedagogical report from the Raíces platform, as it is not responsible for such a system. Therefore, the claim regarding the right of erasure is upheld, requiring Colegio Caude to erase the personal data of the interested party or to properly explain the reasons that prevent compliance with the exercised right as expressed in this Legal Basis.

In the event that the erasure of personal data is resolved, this erasure must be carried out once the requested right of access has been addressed, as stated in the previous point. Furthermore, the erasure will be carried out by means of blocking the personal data, so that it remains available in case the parties exercise possible actions, including any appeals that may be filed against this resolution. In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that Article 15 of the GDPR has been infringed and to urge EL CATON, S.C.M. (COLEGIO CAUDE), with NIF F84282763, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right of access, from C/ Jorge Juan, 6

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in accordance with the provisions set forth in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO GRANT the claim made by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge EL CATON, S.C.M. (COLEGIO CAUDE), with NIF F84282763, to send to the claimant a certification within ten working days following the notification of this resolution, addressing the requested right of erasure or providing a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions set forth in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

THIRD: TO NOTIFY this resolution to Mr. A.A.A. and to EL CATON, S.C.M. (COLEGIO CAUDE).

In accordance with the provisions set forth in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions set forth in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions set forth in Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction,

within two months from the day following the notification of this act, as provided in Article 46.1 of the
aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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